

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 14, 2019

The Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Dicky Shanor and Jeff White. Absent: Scott Roybal. Also present: Kris Jones, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 20, 2018. Motion (per Consent Agenda) carried.

[CA] Minutes from Sine Die Session of the Governing Body on January 7, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from First Regular Meeting of the Governing Body on January 7, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium Density Residential to NR-2 Neighborhood Residential – Medium Density for Lots 1 and 2, Block 534, Original City of Cheyenne, situated in the NW ¼ of Section 5, T.13N., R.66W., of the 6th P.M., Cheyenne, Wyoming (located at the southwest corner of the intersection of east 10th Street and House Ave). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. (#4256)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Overland Trails Planned Unit Development (PUD) to LI, Light Industrial for a parcel of land consisting of Tract

B, Overland Trails Fifth Filing Subdivision, Cheyenne, Wyoming (located east of Clear Creek Parkway and south of College Drive). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4257)

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 6.2.7 of the UDC to remove the maximum parking limitation and to allow applicants to request the Director to approve additional parking. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Dr. Rinne moved to amend by substitute dated January 8, 2019, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#4258)

ORDINANCE – 1st READING – Creating Chapter 12.28, Downtown Graffiti Abatement Pilot Program, of Title 12, Streets, Sidewalks and Public Places of the Municipal Code of the City of Cheyenne, Wyoming, and providing procedures for the operation thereof – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Delegating the review authority authorized by W.S. §34-12-103(b) to the Director of the City of Cheyenne Planning and Development Department – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.2 Planned Development Regulating Plan and Section 5.6.2 PUD – Planned Unit Development District, of the Cheyenne Unified Development Code (UDC) amending Ordinance Number 3741, which established The Village Planned Unit Development (PUD), by adding indoor entertainment as a land use category permitted by right for Lot 28 of Block 2 of The Village PUD, adding a new Section 5.11 to defer to the UDC standards where the PUD is silent on Development Standards, and, pursuant to Section 2.2.1 of the UDC, amending The Village PUD map to reflect Lot 28 instead of Lots 30 and 31 of The Village Subdivision for the subject parcel, Cheyenne, Wyoming, (located west of and adjacent to Powderhouse Road, south of Old Town Lane) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for 10th Street Subdivision, the west 7 feet of Lot 1, and all of Lot 2, Block 534, Original City of Cheyenne, situated in the NW 1/4 of Section 5, T.13N., R.66W., of the 6th P.M., Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of East 10th Street and House Avenue. Motion (per Consent Agenda) carried. (#5970)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds. Motion (per Consent Agenda) carried. (#5971)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Wiese Subdivision, 2nd Filing, a replat of Lot 3, Block 1, Wiese Subdivision, and a portion of Tract 79, Allison Tracts, 2nd Filing, Laramie County, Wyoming (located south of and adjacent to E.

Prosser Road, east of S. Greeley Highway) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Destin Heights, a plat of the W 1/2 NE 1/4, and the N 1/2 SE 1/4 NE 1/4 of Section 24, Township 14N., Range 66 W. of the 6th P.M., Laramie County, Wyoming (located southwest of the intersection of Beckle and Christensen Roads) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2019 CLG grants (Saving Places Conference attendance, Historic Airport Fountain Phase 1 Construction Project, Cheyenne Façade Improvement Program Project) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Lease Agreement between the City of Cheyenne, Community Recreation and Events Department, and Brian Chalstrom d/b/a Putt Hutt, for premises used as a miniature golf course in Lions Park – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC, to designate HollyFrontier as the presenting sponsor of Superday 2019, Superday Tour De Prairie, and Superday 5k/10k Run – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6918 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, to add the Guaranteed Maximum Price for Phase I abatement and demolition of existing site for the Municipal Court Building Project. (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-10-19 for furnishing one truck for the Fleet Division and one truck with a plow for the Facilities Division (2015-2018 1% Sales Tax and general fund). Motion (per Consent Agenda) carried.

[CA] Consideration of Bid #E-11-19 for furnishing one new 2018-2019 cab & chassis with 45-foot aerial device body for the Forestry Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Transfer of retail liquor license application filed with the City Clerk's office for Dillinger's, LLC d/b/a Dillinger's, 1601 Central Ave., Cheyenne, Wyoming (license currently held by One East Sixteenth, LLC). Motion (per Consent Agenda) carried.

[CA] Bar and grill liquor license application filed with the City Clerk's office for DBS Napoli's Cheyenne, LLC d/b/a Napoli's, 1901 Central Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Appointments of Diane Gonnelly to the Cheyenne Housing Authority Board, and Michelle Garcia to the Board of Adjustment. Mr. Laybourn moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointments).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the February 21, 2019 Wyoming Association of Municipalities Winter Conference Business Meeting to be held in Cheyenne, Wyoming – referred to Finance Committee.

Announcement was made that due to the Martin Luther King Jr. Holiday on Monday, January 21, 2019, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O’Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 22, 2019 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 23, 2019 at Noon.

Under other business:

Noel Griffith, Jr. and Jaime Winters, Noel Griffith, Jr., & Associates Architects, provided a presentation including handouts (on file with City Clerk’s office) of the exterior design for the proposed Municipal Court Building Project. Mr. Winters and Mr. Griffith provided information related to materials that will be used for the project and explained the design will include features that pay homage to the original building design. They advised they are working with the Planning and Development Department on the streetscape design. During discussion and inquiry related to the possibility of including historical design elements, Mr. Griffith advised that can be considered in the proposed design.

Upon inquiry, Vicki Nemecek, Director of Public Works, provided information relating to issues involving the recent holiday sanitation pick-up process.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:24 p.m.

Submitted by,

Kristina F. Jones, City Clerk
City Clerk

This notice is available in alternative, accessible formats upon request.

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